

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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NYRON COOPER, DARIEN M. WAGNER, II, LAMAR
SPENCER, B.M., an infant under the age of 15, by his
Mother and Natural Guardian, VICTORIA NOEL and
VICTORIA NOEL, individually,

Plaintiff designate Kings
County as the place of trial

Basis of the venue is the Locus
of Occurrence

Plaintiffs,

SUMMONS

-against-

Plaintiff, VICTORIA NOEL
resides at
1200 Park Place
Brooklyn, New York 11213

THE CITY OF NEW YORK, POLICE OFFICER JESSE
TRAP and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

County of Kings

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007
(Email address: ServiceECF@law.nyc.gov)
To accept service as per Governor Cuomo's
Executive Orders 202.8, 202.14, 202.28, 202.38,
202.48, 202.55 and 202.60 in the present time
until October 4, 2020)

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER JESSE TRAP
c/o New York City Police Department- 84th
Precinct
301 Gold Street
Brooklyn, New York 11201

Dated: Brooklyn, New York
September 29, 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
 NYRON COOPER, DARIEN M. WAGNER, II, LAMAR
 SPENCER, B.M., an infant over the age of 15, by his
 Mother and Natural Guardian, VICTORIA NOEL and
 VICTORIA NOEL, individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JESSE
 TRAP and JOHN DOES-Police Officers as yet
 unidentified,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
 defendants herein, upon information and belief, respectfully show to this Court, and allege as
 follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
 AND BATTERY ON BEHALF OF NYRON COOPER**

1. That at all times hereinafter mentioned, plaintiff, NYRON COOPER, was and still is a resident of the County of Queens, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on November 13, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served

and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, NYRON COOPER, is deemed waived.

6. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, NYRON COOPER, was lawfully present at or about the Jay Street-Metro Tech Subway Station, on the platform for the A train in the Brooklyn bound direction, in the County of Kings, City and State of New York.

8. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, NYRON COOPER, was approached and was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being tackled to the ground, beaten and being forcefully placed in handcuffs. Thereafter, the plaintiff was placed under arrest and was taken into police custody and brought to the 84th Precinct, where the plaintiff was placed in a holding cell for approximately eleven (11) hours. On October 26, 2019 at approximately 1:00 am the plaintiff was taken to Kings County Central Booking where he was held until he was arraigned and released at approximately 8:00 pm.

9. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, NYRON COOPER, was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly,

intentionally and willfully.

11. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, NYRON COOPER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, NYRON COOPER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF NYRON COOPER**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, NYRON COOPER.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, JOHN POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, NYRON COOPER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF NYRON COOPER**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, NYRON COOPER.

21. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, plaintiff, NYRON COOPER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, NYRON COOPER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF NYRON COOPER**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, NYRON COOPER.

26. That the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, NYRON COOPER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF NYRON COOPER**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard for the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, NYRON COOPER.

31. That as a result of said intentional and negligent acts, the plaintiff, NYRON COOPER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, NYRON COOPER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF NYRON COOPER**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, NYRON COOPER.

36. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, NYRON COOPER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF NYRON COOPER**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, NYRON COOPER.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, NYRON COOPER, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF NYRON COOPER**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, NYRON COOPER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF DARIEN M. WAGNER, II**

49. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. That at all times hereinafter mentioned, plaintiff, DARIEN M. WAGNER, II, was and still is a resident of the County of Kings, City and State of New York.

51. That prior hereto on November 13, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and

up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

52. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, DARIEN M. WAGNER, II, was held on May 14, 2020.

53. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DARIEN M. WAGNER, II, was lawfully present at or about the Jay Street-Metro Tech Subway Station, on the platform for the A train in the Brooklyn bound direction, in the County of Kings, City and State of New York.

54. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, DARIEN M. WAGNER, II, was approached and was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being punched in the face, grabbed and being forcefully placed in handcuffs. Thereafter, the plaintiff was placed under arrest and taken into police custody and brought to the 84th Precinct, where the plaintiff was held in a holding cell for approximately eleven (11) hours. On October 26, 2019 at approximately 1:00 am the plaintiff was taken to the Kings County Central Booking where he was arraigned and released at approximately 8:00 pm.

55. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DARIEN M. WAGNER, II, was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

56. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

57. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-

Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, DARIEN M. WAGNER, II, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

58. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

59. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

60. By the reason of the foregoing, the plaintiff, DARIEN M. WAGNER, II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF DARIEN M. WAGNER, II**

61. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "60" inclusive with the same force and effect as if more fully set forth at length herein.

62. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, DARIEN M. WAGNER, II.

63. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

64. By the reason of the foregoing, the plaintiff, DARIEN M. WAGNER, II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF DARIEN M. WAGNER, II**

65. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "64" inclusive with the same force and effect as if more fully set forth at length herein.

66. That on October 25, 2019 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, DARIEN M. WAGNER, II.

67. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

68. That as a result of the aforesaid false arrest and confinement, plaintiff, DARIEN M. WAGNER, II, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

69. By the reason of the foregoing, the plaintiff, DARIEN M. WAGNER, II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF DARIEN M. WAGNER, II**

70. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "69" inclusive with the same force and effect as if more fully set forth at length herein.

71. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, DARIEN M. WAGNER, II.

72. That the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

73. By the reason of the foregoing, the plaintiff, DARIEN M. WAGNER, II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF DARIEN M. WAGNER, II**

74. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "73" inclusive with the same force and effect as if more fully set forth at length herein.

75. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard for the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

76. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, DARIEN M. WAGNER, II.

77. That as a result of said intentional and negligent acts, the plaintiff, DARIEN M. WAGNER, II, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

78. By reason of the foregoing, the plaintiff, DARIEN M. WAGNER, II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION ON BEHALF OF DARIEN M. WAGNER, II**

79. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "78" inclusive with the same force and effect as if more fully set forth at length herein.

80. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

81. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, DARIEN M. WAGNER, II.

82. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

83. By reason of the foregoing, plaintiff, DARIEN M. WAGNER, II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF DARIEN M. WAGNER, II**

84. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "83" inclusive with the same force and effect as if more fully set forth at length herein.

85. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, DARIEN M. WAGNER, II.

86. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

87. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

88. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

89. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

90. As a direct and proximate result of this unlawful conduct, the plaintiff, DARIEN M. WAGNER, II, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF DARIEN M. WAGNER, II**

91. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "90" inclusive with the same force and effect as if more fully set forth at

length herein.

92. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

93. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

94. By the reason of the foregoing, the plaintiff, DARIEN M. WAGNER, II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF LAMAR SPENCER**

95. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "94" inclusive with the same force and effect as if more fully set forth at length herein.

96. That at all times hereinafter mentioned, plaintiff, LAMAR SPENCER, was and still is a resident of the County of Queens, City and State of New York.

97. That prior hereto on November 13, 2019, and within the time prescribed by law, as sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

98. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, DARIEN M. WAGNER, II, is deemed waived.

99. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, LAMAR SPENCER, was lawfully present at or about the Jay

Street-Metro Tech Subway Station, on the platform for the A train in the Brooklyn bound direction, in the County of Kings, City and State of New York.

100. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, LAMAR SPENCER, was approached and was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being punched in the back of the head, tackled to the ground, beaten and being forcefully placed in handcuffs. Thereafter, the plaintiff was placed under arrest and taken into police custody and brought to the 84th Precinct, where the plaintiff was held in a holding cell for approximately eleven (11) hours. On October 26, 2019 at approximately 1:00 am the plaintiff was taken to the Kings County Central Booking where he was arraigned and released at approximately 8:00 pm.

101. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, LAMAR SPENCER, was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

102. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

103. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, LAMAR SPENCER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

104. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

105. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

106. By the reason of the foregoing, the plaintiff, LAMAR SPENCER sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF LAMAR SPENCER**

107. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "106" inclusive with the same force and effect as if more fully set forth at length herein.

108. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, LAMAR SPENCER.

109. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

110. By the reason of the foregoing, the plaintiff, LAMAR SPENCER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN NINETEENTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF LAMAR SPENCER**

111. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "110" inclusive with the same force and effect as if more fully set forth

at length herein.

112. That on October 25, 2019 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, LAMAR SPENCER.

113. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

114. That as a result of the aforesaid false arrest and confinement, plaintiff, LAMAR SPENCER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

115. By the reason of the foregoing, the plaintiff, LAMAR SPENCER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTIETH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF LAMAR SPENCER**

116. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "115" inclusive with the same force and effect as if more fully set forth at length herein.

117. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, LAMAR SPENCER

118. That the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

119. By the reason of the foregoing, the plaintiff, LAMAR SPENCER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF LAMAR SPENCER**

120. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "119" inclusive with the same force and effect as if more fully set forth at length herein.

121. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard for the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

122. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, LAMAR SPENCER.

123. That as a result of said intentional and negligent acts, the plaintiff, LAMAR SPENCER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

124. By reason of the foregoing, the plaintiff, LAMAR SPENCER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-SECOND CAUSE OF ACTION FOR
MALICIOUS PROSECUTION ON BEHALF OF LAMAR SPENCER**

125. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "124" inclusive with the same force and effect as if more fully set forth at length herein.

126. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police

Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

127. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, LAMAR SPENCER.

128. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

129. By reason of the foregoing, plaintiff, LAMAR SPENCER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-THIRD CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF LAMAR SPENCER**

130. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "129" inclusive with the same force and effect as if more fully set forth at length herein.

131. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, LAMAR SPENCER.

132. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

133. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

134. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

135. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

136. As a direct and proximate result of this unlawful conduct, the plaintiff, LAMAR SPENCER, sustained the damages hereinbefore alleged.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF LAMAR SPENCER**

137. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "136" inclusive with the same force and effect as if more fully set forth at length herein.

138. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

139. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

140. By the reason of the foregoing, the plaintiff, LAMAR SPENCER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF B.M., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, VICTORIA NOEL**

141. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "140" inclusive with the same force and effect as if more fully set forth at length herein.

142. That at all times hereinafter mentioned, infant plaintiff, B.M., was and still is a resident of the County of Kings, City and State of New York.

143. That at all times hereinafter mentioned, plaintiff, VICTORIA NOEL, was and still is a resident of the County of Kings, City and State of New York.

144. That prior hereto on October 30, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

145. Pursuant to the General Municipal Law, Statutory 50-H Hearings of the plaintiffs were held on January 8, 2020.

146. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, B.M., was lawfully present at or about the Jay Street-Metro Tech Subway Station, on the platform for the A train in the Brooklyn bound direction, in the County of Kings, City and State of New York.

147. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, infant plaintiff, B.M., was

approached and was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being beaten, kicked, tackled, kneed, punched in the face, head, neck and back among parts of his body repeatedly, forcibly held by his head and neck and then slammed him to the ground and then threw him to the ground and being forcefully placed in handcuffs. Thereafter, the plaintiff was placed under arrest. The plaintiff requested medical attention due to injuries sustained, but was denied by defendants. The plaintiff was taken into police custody and brought to the 84th Precinct, where the plaintiff was held there for approximately twelve (12) hours without medical attention. Thereafter he was transported to NYU Langone-Cobble Hill Hospital for medical treatment while in handcuffs and escorted by multiple police officers. He was taken to the Crossroads Juvenile Center and remained overnight before being transferred to the Supreme Court, New York County, where he was released at approximately 2:00 pm., on October 26, 2019.

148. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, B.M., was assaulted and battered by the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

149. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

150. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the infant plaintiff, B.M., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

151. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

152. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

153. By the reason of the foregoing, the infant plaintiff, B.M., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF B.M., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, VICTORIA NOEL**

154. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "153" inclusive with the same force and effect as if more fully set forth at length herein.

155. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the infant plaintiff, B.M.

156. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

157. By the reason of the foregoing, the infant plaintiff, B.M., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN TWENTY-SEVENTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF B.M., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, VICTORIA NOEL**

158. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "157" inclusive with the same force and effect as if more fully set forth at length herein.

159. That on October 25, 2019 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the infant plaintiff, B.M.

160. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

161. That as a result of the aforesaid false arrest and confinement infant plaintiff, B.M., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

162. By the reason of the foregoing, the infant plaintiff, B.M., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF B.M., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, VICTORIA NOEL**

163. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "162" inclusive with the same force and effect as if more fully set forth at length herein.

164. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the infant plaintiff, B.M.

165. That the defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

166. By the reason of the foregoing, the infant plaintiff, B.M., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-NINTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON
BEHALF OF B.M., AN INFANT BY HIS MOTHER AND
NATURAL GUARDIAN, VICTORIA NOEL**

167. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "166" inclusive with the same force and effect as if more fully set forth at length herein.

168. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard for the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

169. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, B.M.

170. That as a result of said intentional and negligent acts, the infant plaintiff, B.M., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

171. By reason of the foregoing, the infant plaintiff, B.M., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTIETH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF B.M., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, VICTORIA NOEL**

172. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "171" inclusive with the same force and effect as if more fully set forth at length herein.

173. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

174. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the infant plaintiff, B.M.

175. That on October 25, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

176. By reason of the foregoing, infant plaintiff, B.M., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-FIRST CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF B.M., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, VICTORIA NOEL**

177. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "176" inclusive with the same force and effect as if more fully set forth at length herein.

178. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by infant plaintiff, B.M.

179. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

180. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

181. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

182. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

183. As a direct and proximate result of this unlawful conduct, the infant plaintiff, B.M., sustained the damages hereinbefore alleged.

**AS AND FOR A THIRTY-SECOND CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF B.M., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, VICTORIA NOEL**

184. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "183" inclusive with the same force and effect as if more fully set forth at

length herein.

185. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

186. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JESSE TRAP and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

187. By the reason of the foregoing, the infant plaintiff, B.M., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-THIRD CAUSE OF ACTION FOR LOSS OF
SERVICES ON BEHALF OF VICTORIA NOEL, AS
MOTHER AND NATURAL GUARDIAN OF THE INFANT, B.M.**

188. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "187" herein, as though more fully set forth herein at length.

189. That at all times hereinafter mentioned, the plaintiff, VICTORIA NOEL, was the lawful Mother and Natural Guardian of the infant plaintiff, B.M., and as such said plaintiff, VICTORIA NOEL, was entitled to the society and services of said infant plaintiff, B.M.

190. By reason of the afore-described negligence of defendants, the plaintiff, VICTORIA NOEL, was deprived of the society and services of the infant plaintiff, B.M., and shall forever be deprived of said society and services.

191. As a result of herein above, plaintiff, VICTORIA NOEL, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, B.M.

192. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, VICTORIA NOEL, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

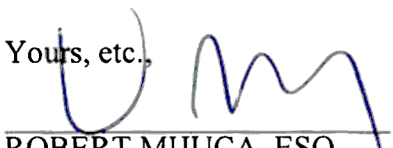
WHEREFORE, plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, NYRON COOPER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action;

plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action; plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifteenth** Cause of Action; plaintiff, DARIEN M. WAGNER, II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixteenth** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventeenth** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighteenth** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Nineteenth** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twentieth** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-First** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Second** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Third** Cause of Action; plaintiff, LAMAR SPENCER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Fourth** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Fifth** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional

limits of all lower Courts on the **Twenty-Sixth** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Seventh** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Eighth** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Ninth** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirtieth** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-First** Cause of Action; plaintiff, B.M., an infant by his Mother and Natural Guardian, VICTORIA NOEL, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Second** Cause of Action; plaintiff, VICTORIA NOEL, Mother and Natural Guardian of infant plaintiff, B.M., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Third** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
September 29, 2020

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 19BM10-25

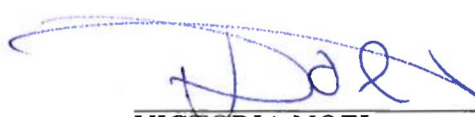
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

VICTORIA NOEL, being duly sworn, deposes and says, that deponent is the Mother and Natural Guardian of the infant plaintiff, B.M., in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


VICTORIA NOEL

Sworn to before me this 2nd
of October, 2020


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23